

Brief to the Standing Committee on Public Safety and National Security

Study of Bill C-22, An Act respecting lawful access

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Submitted in a personal capacity

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Summary

I am submitting this brief in my personal capacity as a Canadian who works in software infrastructure. The views expressed are my own and do not reflect the views of my employer or any other organization.

I support the legitimate need for law enforcement and national security agencies to investigate serious crime. My concern is not that police should never be able to obtain digital evidence. My concern is that Bill C-22 creates broad and technically risky obligations for electronic service providers, especially in Part 2, the proposed *Supporting Authorized Access to Information Act*.

Modern secure systems are increasingly designed so that providers cannot access user content, encryption keys, logs, or other sensitive user data. End-to-end encryption, zero-knowledge storage, no-logs services, and similar designs are security features, not loopholes. They protect Canadians from criminals, hostile foreign actors, insider abuse, negligent data handling, and future overreach.

Bill C-22 contains language stating that providers are not required to introduce a “systemic vulnerability.” That safeguard is important, but it is not sufficient. A lawful access capability can weaken a system even if it is not described as a backdoor. A requirement to retain metadata, preserve access capabilities, install technical interfaces, assist with access-enabling equipment, or redesign systems so that access remains possible may itself change the security properties of a service.

My preferred recommendation is that Part 2 be separated from Bill C-22 and studied independently. If Parliament is unwilling to separate Part 2, the bill should not proceed without substantial amendments protecting encryption, narrowing provider obligations, removing suspicionless metadata retention, strengthening review mechanisms, and protecting privacy-preserving architecture.

Preferred Approach

The Committee should recommend that Part 2 of Bill C-22 be separated from the bill and referred for separate study.

Part 2 would enact the proposed *Supporting Authorized Access to Information Act*, which creates a broad framework of obligations for electronic service providers in relation to authorized access to information.^[^1] These provisions raise complex questions about encryption, compelled technical capability, metadata retention, cybersecurity, infrastructure design, inspection powers, confidentiality obligations, and digital sovereignty.

Those issues deserve their own dedicated study. They should not be treated as secondary implementation details attached to lawful access amendments in the *Criminal Code*.

If Part 1 proceeds, it should still be amended. In particular, the Committee should amend the proposed confirmation of service demand, subscriber information production order, and foreign production request provisions so that they include stronger judicial authorization, higher thresholds, minimization requirements, clearer challenge processes, and limits on voluntary disclosure.^[^2]

Alternative Approach: Minimum Amendments if Part 2 Proceeds

If Parliament is unwilling to separate Part 2 from Bill C-22, the following amendments should be treated as the minimum necessary to reduce the bill's privacy, security, and infrastructure risks.

Unless otherwise stated, section references below are to the proposed *Supporting Authorized Access to Information Act*, enacted by clause 41 of Bill C-22.

1. Protect encryption and privacy-preserving architecture

Amend section 2(1) by expanding the definition of "systemic vulnerability." The current definition focuses on unauthorized access to secure information.^[^3] It does not clearly capture exceptional access mechanisms created for authorized use that may later become targets for misuse, compromise, expansion, or abuse.

The definition should include any requirement that materially weakens confidentiality, integrity, authentication, anonymity, unlinkability, resistance to misuse, or resistance to unauthorized access.

The Act should also state:

For greater certainty, nothing in this Act authorizes any regulation, order, request, agreement, arrangement, or assistance obligation that would require an electronic service provider to

weaken, bypass, defeat, remove, redesign, or avoid deploying encryption or other electronic protections.

This should include a prohibition on requiring providers to decrypt information they do not possess in decrypted form; retain plaintext, encryption keys, session keys, recovery keys, or equivalent access material; introduce key escrow or exceptional access mechanisms; disable or weaken end-to-end encryption; redesign a service to preserve future access to information that would otherwise be unavailable to the provider; or prevent the deployment, improvement, or repair of encryption or other security protections.

The Act should further include a non-derogation clause:

Nothing in this Act shall be interpreted as requiring an electronic service provider to design, operate, modify, or continue operating an electronic service in a manner that ensures the provider retains access to user content, metadata, encryption keys, plaintext, logs, or other information that the provider would not otherwise collect, retain, or be able to access.

This would preserve lawful access to information a provider actually possesses, while protecting end-to-end encryption, zero-knowledge services, no-logs services, and similar privacy-preserving systems.

2. Remove bulk metadata retention

Delete section 5(2)(d).

That provision would allow regulations requiring core providers to retain categories of metadata, including transmission data, for periods of up to one year.^[^4]

If Parliament wishes to preserve data for investigations, it should use targeted preservation powers, not generalized retention obligations. Any retention or preservation obligation should be targeted to a specific person, account, device, identifier, or investigation; based on individualized suspicion; authorized by a judge; time-limited; no broader than necessary; and subject to deletion once no longer required.

Metadata is not harmless. The Supreme Court of Canada has recognized serious privacy interests in subscriber information and IP addresses, including because such information can connect state authorities to revealing trails of online activity.^[^5]

3. Narrow provider scope and technical capability obligations

Amend section 5(1) so that the Governor in Council cannot add, amend, or delete classes of “core providers” by regulation alone.^[^6] Major expansions should require Parliament to amend the Act. At minimum, section 5(1) should require public consultation, publication of a privacy and cybersecurity impact assessment, review by the Privacy Commissioner of Canada, review by relevant cybersecurity expertise, and approval by both Houses of Parliament before a new class is added.

Amend sections 5(2)(a) and 5(2)(b), which allow regulations respecting operational and technical capabilities and the installation or maintenance of devices, equipment, or other things that may enable authorized access.^[^7] These provisions should be narrowed so they cannot require providers to build general-purpose access infrastructure.

Any technical capability should be targeted to a specific lawful authorization, technically limited to the scope of that authorization, temporary unless otherwise judicially authorized, independently reviewed for privacy and cybersecurity impact, incapable of being reused for unrelated access, and prohibited from requiring changes to encryption, logging, data retention, authentication, or access-control architecture beyond what is strictly necessary.

4. Limit ministerial orders and require stronger review

Amend section 7(1). As drafted, the Minister may make an order against an electronic service provider whether or not the provider is a core provider, and the order may contain any provision that may be included in regulations under section 5(2).^[^8]

Section 7(1) should be amended so ministerial orders may apply only to providers already listed as core providers in the schedule, unless Parliament has approved the relevant class of provider. Alternatively, if section 7(1) is retained, it should require prior Federal Court authorization, not only ministerial decision-making and Intelligence Commissioner review.

Before any order under section 7(1) takes effect, the Minister should be required to provide the reviewing body with a privacy impact assessment, a cybersecurity impact assessment, an assessment of whether the order affects encryption or provider access to user data, a written explanation of why less intrusive means are insufficient, and confirmation that the order does not require a systemic vulnerability as amended.

The Privacy Commissioner of Canada should receive notice and be permitted to make submissions where an order materially affects privacy, encryption, metadata retention, or provider access to user data.

Section 10(2) should also be amended so extensions of orders require the same process as original orders, including provider representations and independent approval.^[^9] Section 13 should be deleted or amended so ministerial orders cannot override regulations intended to provide limits, definitions, and safeguards.^[^10]

5. Narrow assistance, secrecy, judicial review, and inspection powers

Amend section 14. The obligation to provide reasonable assistance for assessment or testing of access-enabling equipment should not require a provider to disclose or provide access to encryption keys, source code, signing keys, production credentials, internal security documentation, unrelated vulnerability information, production systems, customer data, or information that would compromise

the security of other users.^[^11] Testing should occur only in isolated, non-production environments unless a judge authorizes otherwise.

Amend section 15 so confidentiality obligations are not automatic.^[^12] Secrecy should require a written necessity finding, a defined time limit, judicial or independent approval for extensions, exceptions for legal counsel and necessary professional disclosure, aggregate transparency reporting, and delayed notice to affected users wherever possible.

Amend section 17 to allow urgent judicial review without 15 days' notice where delay could cause irreparable harm, compromise security, expose privileged information, or require a provider to alter a security architecture before the court can review the order.^[^13] The Act should also provide an automatic temporary stay of the challenged obligation until the court decides whether a stay should continue.

Amend sections 20 and 21 so inspection powers do not authorize access to customer data, source code, encryption keys, vulnerability information, privileged information, production credentials, or production systems unless specifically authorized by a judge.^[^14]

6. Limit regulation-making power and strengthen reporting

Amend section 47(1)(c), which allows regulations respecting the meaning of any term or expression for the purposes of the Act.^[^15] Regulations should not be able to define, redefine, narrow, or expand core privacy and cybersecurity terms, including encryption, electronic protection, systemic vulnerability, electronic service, electronic service provider, core provider, metadata, transmission data, or authorized access. Those terms should be defined by Parliament.

Amend section 49 to strengthen annual reporting.^[^16] The annual report should include the number of orders involving encryption; the number involving metadata retention; the number involving no-logs, zero-knowledge, or end-to-end encrypted services; the number of providers that sought exemptions or challenged orders; the number of orders varied, revoked, withdrawn, or allowed to expire; the duration of orders; the number of confidentiality orders; and the number of times information was withheld from the public report. The unredacted report should also be provided to the Privacy Commissioner of Canada.

Amendments Required to Part 1

If Part 1 proceeds, the following amendments should also be made.

1. Confirmation of service demands

Amend clause 5 of Bill C-22, which creates proposed *Criminal Code* section 487.0121. This provision would allow a peace officer or public officer to demand that a telecommunications service provider

confirm whether it provides or has provided service to a specified subscriber, client, account, or identifier, based on reasonable grounds to suspect.[¹⁷]

The Committee should amend proposed section [487.0121](#) to require prior judicial authorization, except in true exigent circumstances. At minimum, subsection [487.0121](#)(2) should require reasonable grounds to believe; subsection [487.0121](#)(6) should require judicial approval for non-disclosure conditions; the non-disclosure period should be reduced from one year to 90 days unless a judge authorizes an extension; and subsection [487.0121](#)(12), which permits voluntary confirmation and removes civil or criminal liability, should be deleted or narrowed so it cannot be used to bypass the statutory process. [¹⁸]

2. Subscriber information production orders

Amend clause 6 of Bill C-22, which creates proposed *Criminal Code* section 487.0142. That provision allows a judge or justice, on ex parte application, to order a person who provides services to the public to produce all subscriber information relating to specified information, including transmission data, based on reasonable grounds to suspect.[¹⁹]

The Committee should amend proposed section [487.0142](#) to require reasonable grounds to believe, require the order to be as specific as possible, prohibit broad requests for “all subscriber information” unless strictly necessary, require minimization conditions, require deletion of irrelevant information, and require delayed notice to the affected person unless a judge finds that notice would seriously jeopardize an investigation.

3. Foreign production request authorization

Amend clause 7 of Bill C-22, which creates proposed *Criminal Code* section 487.0181. That section would allow a judge or justice to authorize a peace officer or public officer to request transmission data or subscriber information from a foreign entity that provides telecommunications services, or services by telecommunication, based on reasonable grounds to suspect.[²⁰]

The Committee should amend proposed section [487.0181](#) to require reasonable grounds to believe and to require the same privacy, minimization, and notice protections that would apply to a Canadian production order.

Reasons for These Recommendations

A central technical problem with Bill C-22 is that it appears to assume providers can always facilitate access to information when lawfully authorized. In many modern systems, that assumption is false by design.

End-to-end encrypted messaging services, zero-knowledge storage providers, no-logs VPN services, modern password managers, and privacy-preserving cloud systems are often designed so that the provider does not possess the information in a readable or recoverable form. A system can be weakened even if nobody calls the weakness a “backdoor.” A retained access capability, key escrow mechanism, exceptional access process, compelled logging system, plaintext retention requirement, or design requirement that prevents stronger encryption can all undermine the same security properties.

Bill C-22’s systemic vulnerability language is important, but incomplete. A legal interpretation may conclude that an access mechanism is not a systemic vulnerability because it is intended only for authorized use. A technical interpretation may conclude that the same mechanism is a vulnerability because it creates a privileged access path that did not previously exist. That ambiguity matters. Infrastructure, security, and compliance teams evaluate future risk, operational burden, breach risk, regulatory uncertainty, and worst-case interpretation.

Metadata retention creates risk even when content is excluded. Bill C-22 excludes regulations requiring retained information that would reveal content, web browsing history, or social media activities.^[^21] Those exclusions are important, but they do not make metadata harmless. Metadata can reveal patterns of life. It can show who someone communicates with, when they communicate, what services they use, which devices or accounts are associated with them, and how online activity connects across systems. Information that is not retained cannot be leaked, stolen, misused, or demanded later. Information that must be retained becomes a target.

Canada is also a comparatively small technology market. Large multinational firms may be able to absorb complex compliance obligations, although even they may limit features or challenge requirements. Smaller companies, privacy-focused services, encrypted communications providers, open-source projects, and foreign providers may make a simpler decision: Canada is not worth the legal and engineering risk. This would reduce competition, reduce access to privacy-preserving tools, and concentrate power in the largest companies with the resources to absorb compliance costs.

Finally, Bill C-22 should be judged against Canada’s stated digital sovereignty objectives. The Government of Canada has described digital sovereignty as the Government’s capacity to exercise autonomy over digital infrastructure, data, and intellectual property, and to manage and protect digital systems, data, and information regardless of where technologies are developed, hosted, or supported.^[^22] Digital sovereignty is not only about where servers are located. It is about whether people can trust Canadian digital infrastructure. If Canadian law makes it harder to build systems that are secure by design, Canada will become more dependent on a smaller number of large incumbents that can absorb compliance costs and negotiate with government.

Summary of Recommendations

I recommend that the Committee:

1. Separate Part 2 from Bill C-22 and refer it for separate study.

2. If Part 1 proceeds, amend the confirmation of service demand, subscriber information production order, and foreign production request provisions to require stronger judicial authorization, higher thresholds, minimization, deletion, delayed notice, and clearer challenge rights.
3. If Part 2 proceeds, amend section 2(1) to expand the definition of “systemic vulnerability” and add explicit protections for encryption and privacy-preserving architecture.
4. Delete section 5(2)(d), the bulk metadata retention power.
5. Amend sections 5(1), 5(2)(a), and 5(2)(b) to narrow provider scope and prevent general-purpose access infrastructure.
6. Amend sections 7, 8, 9, 10, and 13 to limit ministerial orders, require stronger review, prevent extensions without full review, and prevent ministerial orders from overriding regulations.
7. Amend sections 14, 15, 17, 20, and 21 to narrow assistance obligations, secrecy obligations, judicial review limits, and inspection powers.
8. Amend section 47(1)(c) so core privacy and cybersecurity terms cannot be redefined by regulation.
9. Amend section 49 to strengthen annual reporting, including reporting on encryption, metadata retention, provider challenges, confidentiality orders, redactions, and order duration.

Conclusion

Bill C-22 addresses real investigative challenges, but it does so through powers that are too broad and too ambiguous for the technical systems they would govern.

The Committee should not rely on assurances that the bill is not intended to create backdoors. The question is not only intent. The question is effect.

If compliance requires providers to preserve access capabilities, retain sensitive metadata, alter secure architectures, or avoid deploying systems where provider access is impossible, then Bill C-22 risks weakening Canadian cybersecurity even if it never uses the word “backdoor.”

Canada can support lawful investigations without undermining strong encryption, privacy-preserving infrastructure, and digital sovereignty.

For that reason, I recommend that Part 2 be separated from Bill C-22 for independent study. If Parliament is unwilling to do so, Bill C-22 should not proceed without substantial amendments protecting encryption, limiting metadata retention, narrowing provider obligations, and strengthening independent oversight.

Respectfully submitted,

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Footnotes

[^1]: Bill C-22, An Act respecting lawful access, First Reading, clause 41, proposed Supporting Authorized Access to Information Act, ss. 1–3.

[^2]: Bill C-22, clauses 5–7, proposed Criminal Code ss. [487.0121](#), [487.0142](#), and [487.0181](#).

[^3]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 2(1), definition of “systemic vulnerability.”

[^4]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 5(2)(d).

[^5]: R. v. Spencer, 2014 SCC 43; R. v. Bykovets, 2024 SCC 6.

[^6]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 5(1).

[^7]: Bill C-22, proposed Supporting Authorized Access to Information Act, ss. 5(2)(a)–(b).

[^8]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 7(1).

[^9]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 10(2).

[^10]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 13.

[^11]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 14.

[^12]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 15.

[^13]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 17.

[^14]: Bill C-22, proposed Supporting Authorized Access to Information Act, ss. 20–21.

[^15]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 47(1)(c).

[^16]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 49.

[^17]: Bill C-22, clause 5, proposed Criminal Code s. [487.0121](#)(1)–(2).

[^18]: Bill C-22, clause 5, proposed Criminal Code s. [487.0121](#)(6) and (12).

[^19]: Bill C-22, clause 6, proposed Criminal Code s. [487.0142](#).

[^20]: Bill C-22, clause 7, proposed Criminal Code s. [487.0181](#).

[^21]: Bill C-22, proposed Supporting Authorized Access to Information Act, s. 5(4).

[^22]: Government of Canada, “Digital Sovereignty: A Framework to improve digital readiness of the Government of Canada.”